Miller appointment shows Trump is governing from the foxhole

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Government funding will dominate the lame duck period
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Don’t expect the National Popular Vote Compact

Miller appointment shows Trump is governing from the foxhole. Stephen Miller’s appointment as White House Chief of Staff, replacing Susie Wiles, puts the White House on an antagonistic footing both with a Democratic Congress and with the remainder of the Republican Party.

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The contrast between Miller and Wiles is significant; whereas Wiles was able to maintain professional ties both with Congress and with Republicans who disagree with the president, Miller will make no such overtures. This will probably reduce the effectiveness of the Chief of Staff’s office, with Miller a likely less effective political operator than Wiles.
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Putting Miller in charge of the Chief of Staff’s office also highlights the administration's relationship with Democratic committee chairs next year as a point of friction. Miller himself is a target of investigations, making the next two years more divisive and increasing the risks of significant legal fights over executive privilege.
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Looking broadly, the elevation of Miller, one of the only operatives who has been in Trump’s inner circle for his entire political career, suggests that Trump sees himself as governing from a foxhole for the remainder of his term. While a deal space with Democrats does exist—Trump himself talked up the possibility of a deal with Democrats over immigration on 60 Minutes last night—reaching those will be difficult at best, and Miller is unlikely to be a constructive presence in that regard.

Government funding will dominate the lame duck period. Both chambers of Congress are set to resume legislative session days after the midterms. In the wake of the election, nominations, the Supreme Court, and potential impeachments have dominated the conversation, but we are watching three important areas in this lame duck period:

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Government funding: We expect a short-term continuing resolution (CR) to punt past the 11 December deadline. Democrats now hold more decisive leverage to press the White House on Ukraine, Iran, and domestic spending in exchange for their votes on authorizing packages. Correspondingly, Democrats will turn to pass appropriations packages early in the 120th Congress.

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Permitting reform: We still think the Bipartisan American Affordability and Jobs Act (BAAJA) is moderately likely to pass, despite recent turbulence. Democrats' support will be needed to advance the bill out of the Senate and House leadership will need to prioritize the bill for floor consideration to pass the chamber; the bill's endorsement by the utility lobby EEI, however, is a bullish recent move.

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The NDAA: The bill is nearly certain to be passed out of Congress in the lame duck period. With a defense appropriations bill unlikely to advance, Republicans could make another push at a defense reconciliation bill, but the limited legislative timeline and the post-midterms discordance in the GOP makes this unlikely to move. A supplemental package may arise as a more viable alternative in 2027. Democrats' votes on defense spending will likely also be tied to some form of political concession from Republicans, with spend-for-spend trades in non-defense discretionary spending or delayed cuts to welfare programs the most likely outcome.

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An important NDAA watchpoint will be AI export control bills (MATCH Act, AI OVERWATCH Act, and Chip Security Act). These measures are currently proposed as amendments to the Senate's version of the NDAA; their inclusion in the final bill still remains in question, but could receive a boost from Nvidia CEO Jensen Huang's affair with an alleged Chinese intelligence asset.

Don't expect the National Popular Vote Compact. Democrats in theory now control enough state governments to bring the National Popular Vote Compact—an Electoral College workaround—to fruition, but we believe it is unlikely they do so ahead of the 2028 election.

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The National Popular Vote Compact subverts the Electoral College by having states pledge to award their electors to the winner of the national popular vote—not the popular vote in their state—if states totaling 270 electoral votes, a majority, have also pledged to do so. That would mean the national popular vote winner always wins the Electoral College.

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With unified control of state governments in Pennsylvania, Wisconsin, Michigan, Nevada, and Arizona, Democrats could try to enact the compact in those states as well, bringing the total number of electors under the compact to 283.

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But we doubt this will happen. The primary reason is the list of states enumerated above: All five are key swing states that are extremely influential under the current Electoral College system and would see that relevance diminished or eliminated entirely if the president were elected by a national popular vote. It's hard to see why those states would surrender their influence or why the moderate Democrats who are the backbone of their state-legislature majorities would assent to it.

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Other factors—namely, potential legal challenges and the fact that Electoral College was biased towards Democrats, not against them, in 2024—are also relevant, but the structural disincentives are the most

important. If any swing-state governors express openness to the idea, we would begin to reconsider our view.

Quote of the Day

"I know 'em all, I like 'em a lot. So I may or may not get involved. I don't know. Maybe I'm better off not getting involved." - Trump speaking on 60 Minutes about whether he'll endorse a candidate for the 2028 Republican presidential nomination. Trump waiting until late in the game to endorse a nominee, if he endorses one at all, would be a boon to candidates in the non-Trump lane of a primary, like Florida Governor Ron DeSantis or Senator Ted Cruz (R-TX).

On the Radar

9 November: Congress returns from recess

18-19 November: APEC leaders meeting in China

11 December: Government funding runs out

14-15 December: G20 summit in Florida

15 December: Senator-elect Sherrod Brown (D-OH) is sworn in, reducing Republicans' Senate majority to 52-48.

10 January: US-China tariff truce expires

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